HOW TO DETERMINE REASONABLE ACCOMMODATIONS UNDER THE ADA

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PRESENTER

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This session covers:

With more employees requesting workplace accommodations for conditions like migraines, arthritis, and other potentially disabling health issues, it's crucial for HR professionals and employers to understand their responsibilities under the Americans with Disabilities Act (ADA). This informative and practical webinar explores what qualifies as a disability under the ADA and how to navigate the often-complex process of determining reasonable accommodations. Participants will gain clarity on how the ADA intersects with the Family Medical Leave Act (FMLA) and how to distinguish the two when handling leave requests.

This session will also dive into the ADA-required "interactive process," offering guidance on how to engage in it effectively while reducing legal risks. You'll learn the consequences of failing to properly document this process and how such oversights can lead to significant liability. With real-world scenarios and best practice recommendations, attendees will leave equipped with actionable strategies for managing accommodation requests and protecting their organizations.

Your Benefits For Attending: Comprehensive review of ADA law and what qualifies as a disability.
Key differences between the ADA and the Family Medical Leave Act (FMLA).
Understanding the importance of the interactive process and employer responsibilities.
How to effectively use the interactive process and implement best practices.
Strategies to document accommodations properly and reduce liability risks.

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AURORA TRAINING ADVANTAGE

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TRENDS IN DISABILITY DISCRIMINATION LITIGATION

- These issues involve the intersection of many state and federal laws (i.e., FMLA, and ADA, state paid leave laws, and workers' compensation)
- Each provides a separate and distinct basis for liability/risk
- Liability can be enormous. *Disability discrimination cases result in some of the highest jury verdicts.*

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Claims By The Numbers

- Claims tied to the reasonable accommodation process, whether resulting in on the job accommodation or leaves of absence are one of the largest percentage of single Plaintiff claims handled by Fisher Phillips.
- Key drivers of this litigation:
  - Employee participation in underlying workers' compensation claims
  - Leaves of absence resulting in reduced income or termination
  - Perception from employees that they are being singled out

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EACH LAW HAS A DIFFERENT PURPOSE

- Workers' Comp applies to **work-related injuries and illnesses.**
  - Care and rehabilitation; income benefits
  - Light duty
- FMLA applies to any **serious health condition**, regardless of cause.
  - Job protected leave
- ADA applies to **disabilities**, regardless of cause.
  - Reasonable accommodation of qualified person with disability
- Most **other leave and benefits** are a matter of policy or contract.
  - Health insurance, STD, LTD, PTO, PLOA, etc.

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The Laws Sometimes Overlap

Is leave always required?

- Only the FMLA requires granting leave.
- Leave might be required under Workers' comp.
- Leave might be required under the ADA.

Only the ADA requires "accommodation."

- Leave might be a reasonable accommodation.
- "Light duty" generally is not an ADA reasonable accommodation.

When do all three laws apply?

- **Only** an employee's **work-related** illness or injury could involve all three laws.

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The Law – A Refresher on the ADA

- The ADA prohibits discrimination against qualified individuals with a disability.
- What is a "disability?"
  - *Under ADA*: Physical or mental impairment that ***substantially limits*** a major life activity.
  - Some states offer additional protected.
- Who is protected?
  - Applicants and employees who have an ***actual*** physical or mental impairment, have a ***record*** of a physical or mental impairment, and those who are ***regarded*** as having a physical or mental impairment.

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The Law – Refresher

Americans with Disabilities Act - ADA

- Prohibits discrimination against qualified individuals (applicants and employees) with a **disability**.
- The law requires employers to make reasonable accommodations for disabled individuals as long as there is no undue hardship to the business; no direct threat of harm to the individual or others; or no fundamental alteration of the business.
- Goal is to create level playing field for "disabled" employees or applicants.
- Emphasis on what individuals can do - not on limitations.

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Duty to Accommodate (ADA) – When Triggered?

- The Company has duty to initiate the process if the employee's disability is *known* or *apparent*.
  - Employee tells the Company
  - The Company otherwise becomes aware of the condition, such as through a third party or by its own observation.

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The Law – Refresher

Family Medical Leave Act - FMLA

Focus:

- Provide unpaid, job protected leave
- Protect from adverse treatment
- Prevent retaliation
- Maintain benefits

UNITED STATES DEPARTMENT OF LABOR

Fundamentals of Employee Eligibility:

- Minimum Service – 12 months;
- Minimum Hours – 1,250 in last 12 months; and
- Minimum Worksite – 50 employees within 75 miles.

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Overlap between the ADA and the FMLA

- FMLA covers more health issues than ADA
- After FMLA leave has been exhausted, ADA may still require employer to provide additional leave as a reasonable accommodation; exhaustion of FMLA leave does not excuse employer obligations under ADA
- Use of other leave concurrently

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Comparison of FMLA and ADA

- FMLA

- Provides for unpaid, job protected leave for certain, specified reasons, including an employee's serious health condition
- Which causes inability to perform essential function
- Up to 12 weeks, consecutive or intermittent
- Up to 26 weeks for military caregiver leave

- ADA

- Prohibits discrimination on the basis of a disability
- Requires employer to provide reasonable accommodations, which can include time away from work
- *If* temporarily unable to perform an essential function, but will be able to do so later.
- Must engage in an interactive process

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Comparison of FMLA and ADA...con't

- FMLA

- Unpaid, but can run concurrent with paid benefits
- Amount of leave required **is exact**, no matter the employee's condition
- **The pain the employer feels by the absence is irrelevant** – *no undue hardship exception*
- Can't manipulate job functions to force the employee back to work
- Leave right is replenished (permits leaves in perpetuity as long as not using more than 12 weeks in 12-month period)

- ADA

- Unpaid (if for leave), but can run concurrent with paid benefits
- Amount of leave required **is inexact**
- **The pain the employer feels by the absence is relevant** – *there is an exception for undue hardship**
- ADA allows for manipulation of job functions as needed by employer
- The **leave required is like a booster shot to get the employee through a rough patch** (i.e., designed to enable the employee to perform the essential functions of their job)

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THE INTERACTIVE PROCESS

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ADA - Interactive Process

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ADA - Reasonable Accommodations

Two General Requirements:

1. The Company has duty to engage in a timely, good faith *interactive process*.
2. The Company has duty to provide *reasonable accommodations* in appropriate circumstances.

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ADA - Interactive Process

Consult with employee regarding limitations:

- Conduct initial dialogue with employee, in-person if possible
- Elicit info from employee about abilities, restrictions, limitations
- Ask treating doctor for info on nature and length of restrictions
- Ask employee to identify a desired accommodation
- Consider feasibility of what the employee wants
- Document the process
- Document the outcome

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Examples of Accommodations

- Job Restructuring
  - Employer must consider reallocating nonessential job functions to alter when/how they are performed (i.e., as changing work schedules)
  - Employer need never change or eliminate "essential functions."
  - Employer need not lower quality or quantity standard as an accommodation but may need to provide an accommodation that enables employee to meet quality or standard.
- Transfer to a Vacant Position
  - If an employee can no longer perform essential functions of the job, employers must identify vacant positions for which the employee is qualified.
  - Employers must give qualified disabled employee preference over more qualified outside applicants.
  - Employer is not required to create a new position to accommodate the employee.
- Remote Work
  - Reasonable when the essential functions can be performed at home and would not cause an undue hardship.
- Leave of Absence
  - Last resort if no other accommodation is available.

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What is Not Required of Employers?

- Employers are not required to provide an accommodation if it would result in an undue hardship.
- Undue hardship = *significant difficulty* or *expense* considering:
  - The nature and net cost of accommodation.
  - The overall financial resources of the employer.
  - The impact of the accommodation on the employer's operations, including the ability of other employees to perform their duties.

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What is Not Required of Employers? (con't)

- Employers are not required to provide *unreasonable* accommodations.
- Examples:
  - Creating a new position,
  - hiring someone to assist your employee,
  - *indefinite* leave,
  - providing personal use items needed in accomplishing daily activities both on and off the job (e.g. eye glasses, prosthetic limb, etc.)

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What is Required of Employers?

- Duty to engage in the interactive process
  - An employer must engage in a *good faith interactive process* to determine if there is a reasonable accommodation that would allow an applicant or employee to maintain employment.
  - In certain states, employers can be held liable for failing to engage in the interactive process – ***even if no reasonable accommodation could have been reached***.
- Provide a reasonable accommodation
  - Any appropriate measure that would allow the applicant or employee with the disability to perform the essential functions of the job, a "reasonable accommodation."

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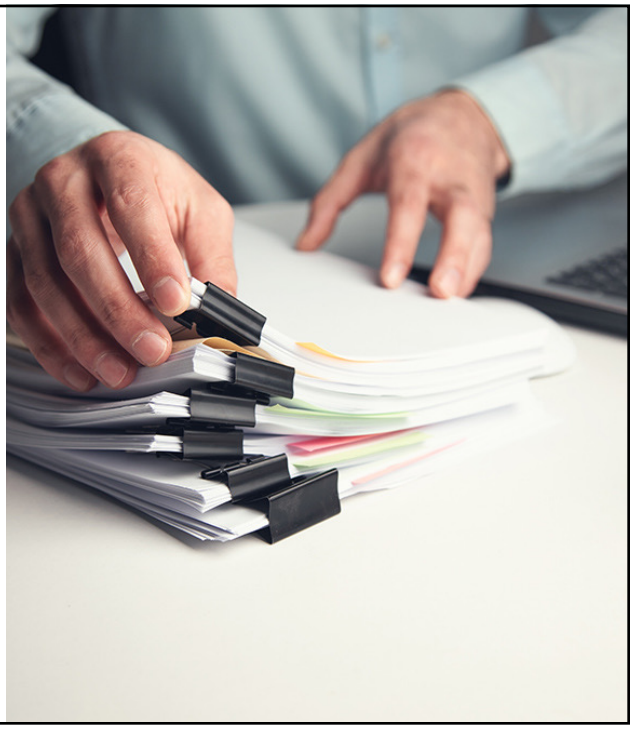
Interactive Process – Managing the Accommodation

- Continue to monitor and document the employee's performance in the modified role to ensure adequacy of accommodation and employee's compliance.
- Workplace restrictions may change during the accommodations.
  - Each change should initiate a new the internal review process.
- Accommodations may need to be extended unless doing so creates an undue hardship.



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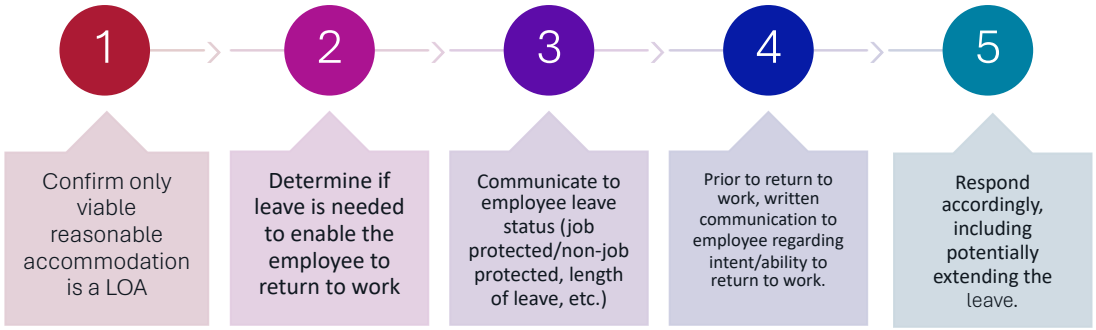
Accommodation as a Leave of Absence: Five-Step Process



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Interactive Process: When Are You Done?

- Accommodation no longer needed;
- Accommodation is successful;
- No reasonable accommodation exists: NOT a "qualified individual";
- Employee fails to cooperate;
- Accommodation is an undue hardship to the Company;
- Direct threat of harm with or without accommodation.

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Interactive Process

- Practical Tips
  - Avoid unprofessional comments in written communications, including emails
  - Streamline the decision making process, minimizing the number of participants
  - NEVER make a unilateral decision based on your assumptions
  - Remain open-minded and consider all reasonable alternatives
  - Maintain communication and documentation
  - Do not drop the ball

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DIAGNOSE THIS....

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DIAGNOSE THIS SCENARIO…

"Migraine Maria"

- Employee significantly late to work 8 times in two months
- Employee tells her co-workers (and anyone who would listen) she was late today because she was stuck in traffic
- Other excuses – dog got out, kids woke up late, had to take something to kid at school, car broke down, etc.
- Manager writes the employee up for her poor attendance
- Reports in discipline meeting she had a migraine and she was unable to get out of bed
- Claims she has intermittent FMLA to cover her tardy

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DIAGNOSIS - *Migraine Maria*

- What info are we missing?
- Work Comp?
- FMLA?
- ADA?

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DIAGNOSIS – Practical Considerations

- Company policy
- Internal forms/procedures
- Documentation of her work excuses?
- Attendance?
- Can you issue the write up?

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DIAGNOSE THIS SCENARIO…

"Allergic Allen"

- Employee works in construction – outdoors.
- Employee developed severe pollen and mold allergies.
- Reports to foreman he can't be around pollen and mold while working.
- Forman can not prevent exposure to pollen and mold while working outside.
- Can you just tell the employee "sorry about your luck-we can't help you?"

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DIAGNOSIS - *Allergic Allen*

- What info are we missing?
- Work Comp?
- FMLA?
- ADA?

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DIAGNOSIS – Practical Considerations

- Company policy
- Internal forms/procedures
- Training
- What else?

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DIAGNOSE THIS SCENARIO…

"Hiking Hellen"

- Employee works on the production line
- Employee takes vay-cay
- Employee sustains severe knee injury while hiking
- Employee out on FMLA for 6 weeks.
- Employee has a return to work with restrictions – must sit for 10 minutes every 2 hours, would be best to have a stool or sit while working.
- Employee wants a "*light duty*" assignment to return to work

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DIAGNOSIS - *Hiking Hellen*

What info are we missing?

Work Comp?

FMLA?

ADA?

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DIAGNOSIS – Practical Considerations

- Company policy
- Internal forms/procedures
- What else?

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DIAGNOSE THIS SCENARIO…

"Loud Noise Floyd"

- PTSD (post traumatic stress disorder) diagnosis
- Diagnosed from childhood trauma
- Loud noises at work triggering PTSD
- Requests accommodation – "*Intermittent ADA*" leave
- Leave work anytime PTSD symptoms arise

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DIAGNOSIS - *Loud Noise Floyd*

- What info are we missing?
- Work Comp?
- FMLA?
- ADA?

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DIAGNOSIS – Practical Considerations

- Company policy
- Internal forms/procedures
- Who else might need to be involved?
- Attendance?
- What else?

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DIAGNOSE THIS SCENARIO…

"Remote Rhonda"

- Finance department employee
- Worked remotely for 1.5 years – no performance issues
- Returned to in person work
- Worked for one week & reported she was diagnosed social anxiety
- Anxiety triggered when:
  - Interactions with her co-workers
  - Weekly department meetings
  - One on one meetings with her supervisor
- Requests an unidentified accommodation

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DIAGNOSIS - ***Remote Rhonda***

What info are we missing?

Work Comp?

FMLA?

ADA?

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Each Law Has a Different Purpose

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QUESTIONS

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THANK YOU

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